



Divorce (Scotland) Act 1964

1964 CHAPTER 91

An Act to amend the law of Scotland relating to divorce and to other consistorial causes; to facilitate reconciliation in such causes; to confer new powers on the courts to award interim aliment; and for purposes connected with the matters aforesaid. [31st July 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Any presumption of condonation which arises from the continuance or resumption of marital intercourse may be rebutted on the part of a husband, as well as on the part of a wife. Presumption as to condonation rebuttable.

2.—(1) In an action of divorce or of separation on the grounds of adultery or of cruelty, the adultery or cruelty shall not be held to have been condoned by reason only of a continuation or a resumption of co-habitation between the parties for any one period not exceeding three months, or of anything done during such co-habitation, if it is proved that co-habitation was continued or resumed, as the case may be, with a view to effecting a reconciliation. Temporary cohabitation with a view to reconciliation not condonation.

(2) In calculating for the purposes of section 1(1)(a) of the Divorce (Scotland) Act 1938 the period for which the defender 1 & 2 Geo. 6. has persisted in desertion of the pursuer, no account shall be taken of any one period not exceeding three months during which the parties resumed co-habitation with a view to a reconciliation.

Willingness of deserted spouse to adhere.

3.—Any rule of law which requires that the pursuer in an action of divorce on the ground of desertion shall satisfy the court of his willingness to adhere to the defender throughout the period specified in section 1(1)(a) of the said Act of 1938 shall cease to have effect; but it shall be a defence in any such action that during that period the pursuer has refused a genuine and reasonable offer by the defender to adhere.

No requirement of protection in divorce for cruelty.

4. In an action of divorce for cruelty under section 1 of the Divorce (Scotland) Act 1938 the court shall not be required to have regard to the need for present or future protection of the pursuer.

Restriction of certain defences.

5.—(1) In an action of divorce on the ground of desertion, it shall no longer be a defence that the pursuer has committed adultery, unless it appears to the court that the adultery was a cause of the defender's desertion of the pursuer, or a cause of the defender persisting in such desertion during the period specified in section 1(1)(a) of the Divorce (Scotland) Act 1938.

(2) Where cruelty is alleged against a party to a consistorial action, it shall not be a defence that the party against whom the allegation is made—

(a) was at the material time suffering from insanity, or

(b) had no malicious intent towards the other party.

Extension of powers of court to award aliment.

6. Without prejudice to its other powers to award aliment, it shall be competent for the court in an action of interim aliment to grant decree of interim aliment where it is satisfied that the pursuer is with just cause living in separation from the defender by reason of the desertion or other conduct of the defender.

Amendment of section 2 of the Divorce (Scotland) Act 1938.

7. For section 2 of the Divorce (Scotland) Act 1938 there shall be substituted the following section:—

“ Financial provision on divorce on ground of incurable insanity.

(1) Where a decree of divorce has been granted on the ground specified in section 1(1)(b) of this Act the court may make such order, if any, as having regard to the respective means of the parties it shall think fit, for the payment by either party to the marriage to which the action relates, or out of any estate belonging to him or held for his behoof, or, in the event of his predeceasing the other party to the said marriage, by his executors, of a capital sum or an annual or periodical allowance to or for the behoof of the other party to the marriage or of any children of the marriage.

(2) Any order made under the last foregoing subsection may be varied or recalled by a subsequent order ”.

8. In this Act, “ the court ” means—

Interpretation.

(a) in relation to divorce proceedings, the Court of Session ; and

(b) in relation to other consistorial proceedings, that Court or the sheriff.

9. This Act may be cited as the Divorce (Scotland) Act 1964. Citation.